Atoure Ltd
30B Chichele Road, London, NW2 3DA
Company tax reference: 623 24114 14574

9 November 2026

HM Revenue and Customs
CT Services
Corporation Tax Services
HM Revenue and Customs
United Kingdom
BX9 1AX

Dear Sir/Madam,

Appeal against flat-rate late filing penalty determination - Company tax reference 623 24114 14574 A03 P05/01

I am writing on behalf of Atoure Ltd to appeal against the £1,000 flat-rate penalty determination issued on 2 November 2026 for the period 1 October 2024 to 30 September 2025.

I understand this penalty reflects the higher flat-rate tier applied when a company's return is late for a third accounting period in succession. I would ask HMRC to look at why all three periods were late together, rather than treating this one in isolation, because the lateness of this third period flows directly from the same underlying cause as the first two.

As explained in my earlier appeal (17 September 2026, regarding periods 11 September 2023 to 10 September 2024 and 11 September 2024 to 30 September 2024), I was admitted as an emergency to the Royal Free Hospital on 7 September 2024 with diabetic ketoacidosis and a new diagnosis of diabetes mellitus, remained an inpatient including a period in intensive care until 25 September 2024, and needed a further period of recovery afterwards. As the company's sole director, with no other officer, employee, or agent able to act on its behalf, this left the company's filing arrangements in a backlog that I have been working through steadily ever since, rather than something I was able to resolve all at once.

By the time I was in a position to address the backlog, HMRC's free online Company Tax Return service had closed (31 March 2026), making commercial filing software mandatory. Sourcing and setting up suitable software took time: I researched and selected a provider from HMRC's own list of recognised commercial suppliers, and then had to resolve a Government Gateway authentication error that blocked submission for several days despite my credentials being confirmed valid directly on gov.uk. I used this same software to file all three outstanding returns as soon as each one was ready, working through them in period order, rather than leaving any of them outstanding any longer than necessary.

The return for this period (1 October 2024 to 30 September 2025) was filed only a short time after the normal 30 September 2026 deadline, once the software access and authentication issues above were resolved, and once the first two periods - which were further behind and needed resolving first - were filed. It was not a fresh, separate failure: it was the tail end of the same recovery process set out above, affecting a sole director with no one else able to act for the company in the meantime.

I would be grateful if HMRC would reconsider the £1,000 flat-rate penalty in light of this, either by reducing it to reflect that the underlying cause was a continuous reasonable excuse rather than three unrelated defaults, or by cancelling it. In the meantime, I would ask that collection of this penalty be suspended pending the outcome of this appeal.

Please let me know if any further information or supporting documentation would help.

Yours faithfully,



Abdul-Malik Baba Toure
Director, Atoure Ltd